



Republika ng Pilipinas
Lalawigan ng Batangas
BAYAN NG PADRE GARCIA

--000000--



Tanggapan ng Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE SPECIAL SESSION OF THE SANGGUNIANG BAYAN OF PADRE V. GARCIA, BATANGAS HELD ON APRIL 16, 2018 AT THE SANGGUNIANG BAYAN SESSION HALL OF PADRE V. GARCIA, BATANGAS.

PRESENT:

Hon. Noel C. Cantos

Municipal Vice Mayor
Presiding Officer

Hon. Emilio M. Tapalla

SB Member

Hon. Rodel C. Pesigan

SB Member

Hon. Nilo C. Dimaculangan

SB Member

Hon. Ferdinand G. Villar

SB Member

Hon. Cristian P. Marasigan

SB Member

Hon. Monaliza G. Ceria

SB Member

Hon. Renzel Mae P. Maala

SB Member

Hon. Nicetas B. Amante

SB Member - LnB President

ABSENT:

Hon. Mark Lester G. Manalo

SB Member

ORDINANCE NO. 16 - 2018

**ORDINANCE DECLARING CERTAIN MONUMENTS IN PADRE GARCIA AS MUNICIPAL
HISTORICAL MONUMENTS**

(Authored by: Hon. Monaliza G. Ceria)

WHEREAS, the 1987 Constitution mandates to foster the preservation, enrichment, and dynamic evolution of a Filipino national culture based on the principle of unity in diversity in a climate of free artistic and intellectual expression. It further provides that, all the country's artistic and historic wealth constitutes the cultural treasure of the nation and shall be under the protection of the State, which may regulate its disposition;

WHEREAS, the National Cultural Heritage Act of 2009 protects and promotes the nation's cultural heritage, its properties and histories and the ethnicity of local communities. It also mandates that the State shall endeavor to create a balanced atmosphere where the historic past coexists in harmony with modern society;

WHEREAS, Section 16 of the RA 7160, provides that local government unit play an important role in the development, promotion and preservation of Filipino culture and encourage the participation of the people in the development and preservation of Filipino identity;

ARTICLE I - TITLE AND PURPOSE

SECTION 1 - This Ordinance shall be known as an **ORDINANCE DECLARING CERTAIN MONUMENTS AS MUNICIPAL HISTORICAL MONUMENT AND PROVIDING MEASURES FOR THEIR CONSERVATION.**

SECTION 2 - PURPOSES - This Ordinance has for its purposes the following:

1. To **PROMOTE** and **CONSERVE** historical monuments with local significance and importance for the preservation of our local culture and heritage;
2. To remind the community of the role of Padre Vicente Garcia, Fr. Antonio Fanchini, and Hon. Garciano Recto in creating and building the municipality;
3. To instill upon the younger generation of today and the generations to come the value of patriotism and sacrifice for the welfare of others;

HON. NOEL C. CANTOS

HON. MICHAEL ANGELO C. RIVERA

HON. NILO C. DIMACULANGAN

HON. CRISTIAN P. MARASIGAN

HON. RENZEL MAE P. MAALA-SAMONTE

ERMEILITA O. KASILAG

HON. EMILIO M. TAPALLA

HON. RODEL C. PESIGAN

HON. FERDINAND G. VILLAR

HON. MONALIZA G. CERIA

HON. NICETAS B. AMANTE

ARTICLE II - DECLARATION OF POLICY

SECTION 3 - The Municipal Government of Padre Garcia, in pursuance to Article XIV, Sections 14, 15, 16 and 17 of the Philippine Constitution and as steward of the welfare of the community must adopt measures to holistically promote and protect its culture, history, and heritage, and preserve the local identity of its people and the community as a whole for the interest and benefit of the present and future generations.

ARTICLE III - DEFINITION OF TERMS**SECTION 4 - DEFINITION OF TERMS**

1. HISTORICAL LANDMARKS - shall refer to sites or structures to commemorate of local importance such as a war or the town's founding and that it aims to represent social significance and serve as a focus for local identity.
2. FR. VICENTE GARCIA MONUMENT - a monument built in commemoration of whom the name of the Municipality of Padre Garcia was derived.
3. FR. ANTONIO FANCHINI MONUMENT- a monument built to commemorate a former parish priest in the municipality who dedicated his life for the people of his parish.
4. HON. GRACIANO RECTO MONUMENT- a monument built in honor of the first Municipal Mayor of Padre Garcia.
5. CONSERVATION - shall refer to all the processes and measures maintaining the cultural significance of a cultural property including, but not limited to preservation, restoration, reconstruction, protection, adaptation or any combination thereof.
6. CULTURAL HERITAGE - shall refer to the totality of cultural property preserved and developed through time and passed on to posterity.
7. CULTURAL PROPERTY - shall refer to all products of human creativity by which a people and a nation reveal their identity, including churches, mosques and other places of religious worship, school and natural history specimens and sites, whether public or privately-owned, movable or immovable, and tangible or intangible.

ARTICLE IV - CERTAIN MONUMENTS IN PADRE GARCIA DECLARED AS MUNICIPAL HISTORICAL MONUMENTS

SECTION 5 - DECLARATION AS MUNICIPAL HISTORICAL MONUMENT. It is hereby declared Padre V. Garcia Monument, Fr. Antonio Fanchini Monument and Hon. Graciano Recto Monuments as Municipal Historical Monuments.

SECTION 6 - LOCATION OF MUNICIPAL HISTORICAL MONUMENTS IN PADRE GARCIA

SECTION 6.A - PADRE V. GARCIA MONUMENT AS HISTORICAL MONUMENT. The life size monument of Padre V. Garcia Monument is located in front of the Municipal Compound of Padre Garcia.

SECTION 6.B - FR. ANTONIO FANCHINI - The Monument of Fr. Antonio Fanchini is located on the left side of the Most Holy Rosary Church almost adjacent to the entrance gate of the said church.

SECTION 6.C - HON. GRACIANO RECTO - The monument of Hon. Graciano Recto is located in the Municipal Park of Padre Garcia declared as "Freedom Park".

ARTICLE V - PENAL PROVISIONS

SECTION 7 - PENAL CLAUSE - A penalty of not less than FIVE HUNDRED PESOS but not more than TWO THOUSAND FIVE HUNDRED PESOS shall be imposed upon any person who shall vandalize, deface or damage these historical monuments and to shoulder the cost for the restoration of the same to its original state.

HON. NOEL C. CANTOS

HON. MICHAEL ANGELO C. RIVERA

HON. NILO C. DIMACULANGAN

HON. CRISTIAN P. MARASIGAN

HON. RENZEL MAEP. MAALA-SAMONTE

ERMEITA O. KASILAG

HON. EMILIO M. TAPALLA

HON. RODEL C. PESIGAN

HON. FERDINAND G. VILLAR

HON. MONTE G. CERIA

HON. NICETAS B. AMANTE

ARICLE VI - FINAL PROVISIONS

SECTION 8 - REPEALING CLAUSE - All existing ordinances, executive orders, implementing rules and regulations, resolutions or parts thereof of this municipality inconsistent with the provision of this Ordinance is deemed repealed, amended or modified accordingly.

SECTION 9 - SEPARABILITY CLAUSE - If any portion of this ordinance is declared unconstitutional or invalid, the other provisions hereof which are not affected, shall continue in full force and effect.

SECTION 10 - EFFECTIVITY - This Ordinance shall take effect thirty (30) days after publication.

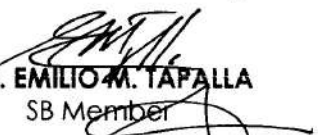
APPROVED this 16th day of April 2018.

I HEREBY CERTIFY, to the correctness of the foregoing ordinance.

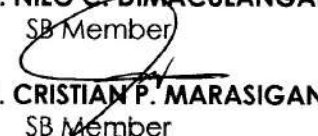

ERMELITA O. KASILAG
Municipal Secretary

ATTESTED:


HON. NOEL C. CANTOS
Municipal Vice Mayor
Presiding Officer

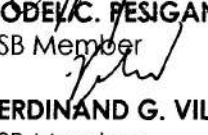

HON. EMILIO M. TAPALLA
SB Member


HON. NILO C. DIMACULANGAN
SB Member

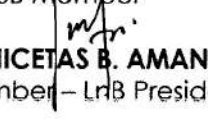

HON. CRISTIAN P. MARASIGAN
SB Member


HON. RENZEL MAE P. MAALA-SAMONTE
SB Member


HON. RODEL C. PESIGAN
SB Member


HON. FERDINAND G. VILLAR
SB Member


HON. MONALIZA G. CERIA
SB Member


HON. NICETAS B. AMANTE
SB Member - Lrb President

APPROVED:


HON. MICHAEL ANGELO C. RIVERA
Municipal Mayor